

2010 03 15

LAKESWOOD CITY COUNCIL MINUTES

Monday, March 15, 2010
City of Lakewood
City Council Chambers
6000 Main Street SW
Lakewood, WA 98499

CALL TO ORDER

Mayor Richardson called the meeting to order at 7:01 p.m.

ROLL CALL

Councilmembers Present: 7 – Mayor Douglas Richardson; Deputy Mayor Don Anderson; Councilmembers Mary Moss, Mike Brandstetter, Jason Whalen, Walter Neary and Claudia Thomas.

FLAG SALUTE

The Pledge of Allegiance was led by Mayor Richardson.

REPORTS BY THE CITY MANAGER

City Manager Neiditz announced that on March 18, 2010, from 6:00 p.m. -8:00 p.m., a neighborhood forum will be held on Wards Lake Park. He also announced that the League of Women Voters invited the City to attend THE NEWS TRIBUNE forum on March 18, 2010 to discuss the Open Meetings Act. With regard to the Colonial Center Theatre, a Request for Proposal was distributed this past week and a site tour is scheduled for interested consultants to visit with the City and property owners on March 18, 2010. Proposals are due on April 12, 2010.

City Manager Neiditz reported that the City has petitioned the Utilities of Transportation Commission to hold public hearings about the Pt. Defiance Bypass Rail project in Lakewood and there is a pre-hearing meeting scheduled for tomorrow, March 16, 2010. He added that the Clover Park School District has been informed of the public hearings and the City of Dupont did adopt a resolution opposing the use of the Barksdale crossing in DuPont.

City Manager Neiditz introduced Lt. Steve Mauer who is leading the Community Service Resource Team (CSRT). All the neighborhood association presidents will be meeting with Steve Mauer to discuss the efforts of the CSRT team. Councilmember Brandstetter spoke about the service boundaries of neighborhood association districts and asked if there is flexibility for redistricting the boundaries. Councilmember Neary asked how the CSRT program will be rolled out and what is the focus and priorities.

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PROCLAMATIONS AND PRESENTATIONS

Pierce Transit System Re-Design Update.

Mr. Lind Simonsen, Pierce Transit Community Relations, spoke about significant cutbacks that Pierce Transit will be facing which will impact Lakewood citizens. He then provided an overview of designing a transit system that the community values and uses. He also reviewed Transit's sales tax revenue since 2007 and a projected \$68 million loss by 2012. He reviewed new funding concepts and Transit's proposed sales tax increase to help restore services. He announced that a Lakewood Public Meeting will be held on March 23, 2010 from 6:00 p.m. - 7:30 pm to invite public input about Transit's redesign.

Discussion ensued on the proposed cuts and comparison of revenues from previous years; service levels; and what information will be presented at the March 23 Lakewood informational meeting.

PUBLIC COMMENTS

Speaking before the Council were:

Amy Paulson, Lakewood resident, spoke about the Father and Daughter Dance event.

Ken Severe, Lakewood resident, thanked Dave Bugher for teaching a citizenship class to a Boy Scouts group. He then spoke about a vehicle tow and abandoned vehicle report when impounding vehicles. He suggested using vehicle boots on a vehicle first before impounding.

Dennis Haugen, Lakewood resident, spoke about systemic problems about City management relative to the building permitting department and Lakewood's bad reputation for starting businesses.

C O N S E N T A G E N D A

- A. Approval of the minutes of the City Council meeting of March 1, 2010.
- B. Approval of the minutes of the City Council Study Session of March 8, 2010.
- C. Approval of payroll check numbers 216 and 111906 to 111933 and direct deposit check numbers 39110 to 39365, in the amount of \$1,128,406.41 for the period February 16, 2010 through February 28, 2010.
- D. Approval of claim voucher numbers 55420 to 55492, in the amount of \$659,721.91 for the period ending March 4, 2010.

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- E. Approval of claim voucher numbers 55493 to 55586, in the amount of \$236,144.92 for the period ending March 11, 2010.
- F. Items Filed in the Office of the City Clerk:
 - 1. Planning Advisory Board meeting minutes of December 9, 2009 and February 17, 2010.
- G. [Resolution No. 2010-07](#)

Setting Monday, April 19, 2010, at approximately 7:00 p.m., as the date for a public hearing by the City Council on the Five Year FY 2010-2015 Consolidated Plan, FY 2010 Annual Action Plan and FY 2007 and FY 2008 Consolidated Plan amendments for CDBG and HOME.

COUNCILMEMBER THOMAS MOVED TO ADOPT THE CONSENT AGENDA AS PRESENTED. SECONDED BY COUNCILMEMBER MOSS. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

R E G U L A R A G E N D A

ORDINANCES

[Ordinance No. 512](#) amending Section 2.48.030 of the Lakewood Municipal Code relative to membership on the

Landmarks and Heritage Advisory Board.

COUNCILMEMBER NEARY MOVED TO ADOPT ORDINANCE NO. 512. SECONDED BY COUNCILMEMBER WHALEN. COUNCILMEMBERS NEARY AND WHALEN WITHDREW THEIR MOTION.

councilmember neary moved to amend ordinance no. 512 by INCREASING THE PROPOSED NUMBER OF REGULAR MEMBERS FROM EIGHT TO NINE AND modifying the emeritus position TO be a non-voting member. THERE BEING NO SECOND TO THE MOTION, THE MOTION DIED.

COUNCILMEMBER THOMAS MOVED TO AMEND ORDINANCE NO. 512 BY DELETING ITEMS B AND C UNDER SECTION 2.48.030. there being no second to the motion, the motion died.

councilmember brandstetter moved to ADOPT amended ordinance no. 512 by deleting item c under section 2.48.030 in its entirety. secondED BY DEPUTY MAYOR ANDERSON. VOICE VOTE WAS TAKEN ON THE MOTION AND CARRIED UNANIMOUSLY.

VOICE VOTE WAS TAKEN ON THE AMENDED ORDINANCE NO. 512 AND CARRIED UNANIMOUSLY.

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UNFINISHED BUSINESS

None.

NEW BUSINESS

None.

BRIEFING BY THE CITY MANAGER

City Manager Neiditz reported that the annual employee recognition event has been merged with the monthly employee recognition event into a quarterly recognition event. He announced that the first quarter event was held last week in celebration of the City's birthday and recognition of employees for outstanding service in the City's guiding principle for service. The two employee recipients for the first quarter were Faye Landskov and Kim Dodds.

City Manager Neiditz recognized Tes Ongoco for receiving her Certification as a Certified Municipal Clerk from the International Institute of Municipal Clerks.

With regard to the University Place Court contract, City Manager Neiditz reported that meetings are being held with attorneys from both cities to work on the Municipal Court contract and get ready for the transition.

City Manager Neiditz announced that Judge Heller has appointed Deana Wright as Court Administrator.

City Manager Neiditz reported that a national hotel firm is working with City staff for locating along the I-5 corridor.

International Building Codes Update

Assistant City Manager Bugher provided an overview of the proposed International Business Code amendments.

Discussion ensued about fire sprinkled residential structures versus non-sprinkled structures relative to the age of the structure; and for sprinkling of multi-family housing.

CITY COUNCIL COMMENTS

Councilmember Neary commented on the Homeland Security meeting he attended relative to planning for a biological chemical incident.

Councilmember Neary commented on a meeting he attended where the Pierce County Sheriff Public Information Officer Ed Troyer spoke about his experience with the media frenzy relative to the tragic incident with Lakewood's four fallen officers.

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Councilmember Moss announced that the Communities in Schools breakfast will be held on March 24, 2010.

Councilmember Brandstetter commented on the Lakewood sub-Chapter of the Association of the United States Army (AUSA) meeting he attended and their discussion about the sub-Chapter's proposed bylaws.

Councilmember Thomas commented on the Lakewood Community Collaboration meeting last week and discussions about the U.S. Census and breakout groups.

Councilmember Whalen announced that the Lakewood Rotary auction will be held this Saturday, March 20, 2010, at 5:30 p.m., at the Clover Park Technical College.

Councilmember Whalen commented on the Relay for Life event in June 2010 and a gathering on March 23, 2010, at the Ram Restaurant.

Deputy Mayor Anderson commented on the economic development website of the Idaho Department of Commerce and asked that Lakewood's website be similar to Idaho's website.

Mayor Richardson indicated that he will be traveling to China and will be stopping by to visit the city of Danzhou.

Mayor Richardson asked if any Councilmember was interested in serving on the LEOFF I Board to review medical-related requests for LEOFF I fire retirees.

Mayor Richardson indicated that the Pierce County Executive is requesting a Lakewood representative to serve on the Basin Review Committee.

Mayor Richardson commented on the bridge closure repairs on Pacific Highway.

Mayor Richardson announced that the Council will recess for five minutes and then recess into Executive Session at 9:00 p.m. for approximately 30 minutes to discuss the performance of a public official. Council recessed at 8:55 p.m.

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Executive Session

Council recessed into Executive Session at 9:00 p.m. At 9:30 p.m., Mayor Richardson announced that Executive Session will be extended an additional 15 minutes. At 9:45 p.m., Mayor Richardson announced that Executive Session will be extended an additional 15 minutes. At 10:00 p.m., Mayor Richardson announced that Executive Session will be extended an additional 10 minutes. At 10:10 p.m., Mayor Richardson announced that Executive Session will be extended an additional 10 minutes. Council reconvened at 10:20 p.m.

ADJOURNMENT

There being no further business, the meeting adjourned at 10:20 p.m.

DOUGLAS G. RICHARDSON, MAYOR

ATTEST:

ALICE M. BUSH, MMC

CITY CLERK